

SAMUELL GORTON:
THE FIRST SETTLER OF WARWICK
R.I.



• LEWIS G. JANES •

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SAMUELL GORTON:

**A FORGOTTEN FOUNDER OF OUR
LIBERTIES
FIRST SETTLER OF WARWICK, R. I.**

BY

LEWIS G. JANES

**AUTHOR OF "A STUDY OF PRIMITIVE CHRISTIANITY,"
ETC.**

"More ideas which have become National, have emanated from the little Colony of Rhode Island, than from all the other American States."—
GEORGE BANCROFT, in Address before the New York Historical Society.

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PREFACE

It has been the misfortune of Rhode Island to have had its earlier history written and read under the bias of prejudices engendered by the controversies which led to its settlement. Justice has not yet been done to the prescience and statesmanship of the remarkable men who were the builders of the first Commonwealth in the world's history dedicated to Soul Liberty.

Among these men, none were possessed of a personality more striking and picturesque than the subject of this paper, Samuella Gorton. The cordial reception of this brief historical sketch by the distinguished audience which gave it a hearing before the Rhode Island Historical Society has induced me to consent to its publication. It has since been carefully revised, and a few doubtful points have been cleared up as well as the character of all available data will permit.

I am indebted to Mr. William D. Ely and Mr. Charles Gorton, of Providence, and Mr. Adolph Gorton, of Philadelphia, for valuable aid and suggestion in perfecting this revision. It is hoped that the publication may stimulate further research in the interesting field of our Colonial history. A native of Rhode Island, the writer traces his ancestry by two distinct lines to the Mayflower, while the first of his family name in America was one of the earliest settlers of the New Haven Colony. He is therefore able to approach the subject without undue bias of ancestral prejudice, and with the sole desire of vindicating the truth of impartial history.

L. G. J.

BROOKLYN, N. Y., May 25, 1896.

SAMUELL GORTON:
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FIRST SETTLER OF WARWICK, R. I.

I

WARWICK, NEW AND OLD

The town of Warwick, R. I., is not to-day of remarkable interest to the antiquary or seeker after the venerable relics of bygone days. It has “come out into the newness” of our nineteenth century life. Its streams respond to the music of the flying shuttle and the turning wheel with a dash and hurry almost human in their restlessness. Half a score of flourishing manufacturing villages lend their potent aid to make it the sixth town, in population, in the State having a larger number of inhabitants to the square mile than any other in the American Union.

The old Colonial and Revolutionary dwellings were largely, doubtless, of a humble sort, and have given place to the more prosperous farm-houses and pretentious mansions of a generation that knows not the ways of the fathers. The busy Pawtuxet and its tributary streams, partly excused from the drudgery of mill-turning by the more potent substitutes of the later day, are pumped away to quench the thirst of the distant city whose contentions a quarter of a millenium ago drove Samuell Gorton^[1] and his colleagues to seek their homes in the Shawomet wilderness, there to become the founders of a State.

Yet the Warwick of to-day, in its summer dress, well repays the visitor who may chance upon its hospitable soil. All along its beautiful shores arise pleasant homes and hostelries for the accommodation of the summer visitor; while inland, the rolling hills, prosperous with growing grass and coming harvests, are not without a quiet and restful beauty which pleases

the eye, and solaces the mind and heart. In the little hamlet of Apponaug, close by Coweset Bay, the brave new Town Hall, one of the finest in New England, testifies to the enterprise as well as to the prosperity of the people. Its newness is in harmonious touch with the prevalent appearance of the country around it. There is nothing old, apparently, in old Warwick but the sub-soil and rocks, and here and there a venerable tree antedating European occupation, beneath the branches of which Pomham and Soccononocco, with their dusky braves, may have sat and smoked the pipe of peace with the men of Massachusetts, or taken counsel as to the best means of circumventing the united wiles of the head-sachem of the Narragansetts, Miantonomi, and his persistent allies, the pale-faced "Gortonoges."

Yet old Warwick has a history surpassed in interest by none other of the New England settlements. Its founder was a man of intellectual and moral force, worthy to rank with Roger Williams, William Bradford, and the other noble founders of our liberties. He was a man much misrepresented in his day and generation, and but little remembered and understood even in our own time, when history is being studied anew in the light of evolution and a true historical method, and reconstructed on the principles of enlightened scholarship and impartial justice. The later history of Warwick also has much of interest for the patriotic American. On its shores the first blow of our Revolutionary struggle was struck, in the capture and destruction of the British schooner Gaspee; while the heights of Warwick Neck were then crowned with a fort, long since dismantled, for the protection of the settlements around Coweset Bay from the attacks of the English.

It is the Warwick of the seventeenth century, not that of the eighteenth or nineteenth, that I would fain call to the minds of my readers,—the Warwick whose inland acres were covered with the primitive wilderness, where wolves and Indians were at home,^[2] and the white man was a stranger; the Warwick which Samuell Gorton sought after being frozen out of Boston, banished from Plymouth and Pocasset, and driven by contentions from Providence and Pawtuxet.

Yonder, on Conimicut Point, he built his block-house,^[3] and therein defied for a day and a night the force of Puritans and savages in equal numbers, aggregating more than four times his own, which Massachusetts sent against him; finally surrendering to superior battalions to prevent blood-shed. Farther south, at the head of Warwick Cove, a quiet arm of the Narragansett, stood his humble homestead, where he passed his declining

years in the honorable service of the Town and Commonwealth which he helped to found; the land surrounding which has remained in unbroken succession in the hands of his descendants to the present day. Near by, John Greene, John Wickes, Randall Holden and the other men, good and true, who were his colleagues and supporters, cleared and tilled their allotted acres, making the wilderness to blossom as the rose.

Yes, there are after all some reminders of these primitive times besides the sub-soil and the ancient cedar by the Potowomut River; for yonder, at Rocky Point, the perennial clambake celebrates in aboriginal fashion and in their native haunts, the shore-feasts of the Indians. And down on Potowomut Neck which Warwick won for her own after long and litigious struggles, once the favorite camping ground of the aborigines, you may still pick up the flint arrow-heads which they fashioned and left behind them three centuries ago. You may paddle up the Pawtuxet, under the over-arching branches of noble trees, into quiet reaches of the river, where the hum of cities and the bustle of civilization seem remote indeed. And in the new Town Hall at Apponaug you may shut out the noises of the day, and curiously con the ancient records of the Town;—you may see the very pages on which these pioneers of a new civilization bore testimony to their humble beginnings, and told, in part, the story of the building of a State. I have searched these records faithfully—here, and in the library of the Historical Society at Providence, where other precious manuscripts are preserved. Some of these men I have come to know. I have thought their thoughts after them in deciphering their writings. I have felt their throbbing human hearts, laboring to lay the foundations of a Commonwealth wherein liberty should be secure under the protection of law; wherein the civil power should have no control over the consciences of men. Something of this would I lay before the impartial reader; in justice to these men who so labored that we might enter into their labors and reap the ripe fruits thereof; in justice also to ourselves, that we as American citizens may not remain ignorant of this forgotten chapter in the noble story of the beginnings of our National life.

II

SOURCES OF INFORMATION

The story of Samuell Gorton is in a large part the narrative of the beginnings of the Commonwealth of Rhode Island. If I mistake not, it also constitutes an important and hitherto unrecognized chapter in the history of the beginnings of our National life. It is a story but little known to the average American citizen. It has been briefly told by John M. Mackie, in Sparks' American Biography, and by Gov. Arnold in his noble volumes of Rhode Island History. Certain phases of it have been discussed and amplified in the interesting monographs of Judge Staples and Judge Brayton.^[4] William D. Ely has thrown important light upon some salient points in Gorton's history, in reports published in the Proceedings of the R. I. Historical Society.^[5] Palfrey has touched it lightly and with scant justice in his History of New England, and Fiske, in his Beginnings of New England, has given it inadequate treatment.^[6] Other historians have alluded to Samuell Gorton but to distort and misrepresent his actions and opinions.

A mere rehash of the narratives of Mackie, Arnold, and Brayton would be unworthy of the attention of this learned Society. To ignore their conscientious efforts to do justice to the founder of Warwick and co-worker with Roger Williams in the building of a Commonwealth dedicated to the principle of Soul Liberty, would, on the other hand, be unjust and impossible to one who would rightly sketch the history and estimate the work of Samuell Gorton. In the light of all that these just-minded sons of Rhode Island have written upon this subject, I have studied it anew and independently, making use of all available printed material, and also of valuable unpublished manuscripts and town records. I have arrived at certain conclusions, quite unexpected when I commenced my investigations, concerning Gorton's political and religious philosophy, which, if correct, will modify previously received opinions of the man and

his work, and which seem to me sufficiently vital and important to merit the attention of all students of American history. It is the main object of this paper to set forth the substance of these conclusions, with some reference to the documentary evidence on which they are based. For the instruction of those who have not made this somewhat obscure episode in Rhode Island history a special subject of investigation, some account of the leading facts of Samuell Gorton's career becomes a preliminary necessity.

III

THE MAN AND HIS WORK

Who was Samuell Gorton? What part did he play in our Colonial history? These questions let us briefly answer before we attempt a somewhat careful study of his religious and political opinions, about which there has been so much misunderstanding. Samuell Gorton was born in the parish of Gorton, England, a few miles from the present bustling city of Manchester, about the year 1592.^[7] He came of a good family, “not entirely unknown,” says Judge Brayton, “to the heraldry of England.”^[8] Here, as Gorton himself declares, “the fathers of his body had dwelt for generations.”

We know but little about his early life. Though he did not attend any of the celebrated schools or universities of England, his education seems to have been carefully conducted by private tutors.^[9] As with many other students of his day, the Bible was his principal text-book. He could read it in the original: he was a master of both Greek and Hebrew. And he brought to the reading a vigorous intellect and a more original and independent judgment than is commonly applied to theological studies.

Samuell Gorton probably dwelt in the vicinity of his birthplace until he was about twenty-five years of age.^[10] Here he made the acquaintance of a Separatist Elder, afterwards connected with the church in Holland, whence came the Mayflower Pilgrims. His mind readily assimilated the spirit of the Puritan revolt against the degenerate formalism of the times; yet his Puritanism was without taint of dogmatic narrowness. He always retained an affection for the church of his fathers. “I drew my tenets,” he says, “from the breasts of my mother, the Church of England.”^[11]

In his early manhood he left Gorton and went to seek his fortune in the great English metropolis. In London he engaged in business, and built for himself a home. In a certain conveyance signed during his residence there, he is described as “Samuell Gorton, clothier,” and also as “Professor of the

misteries of Christ.” Religion and daily occupation were never divorced in his consciousness. He would not make a trade of the former, nor could he conduct the latter on a plane inconsistent with those moral and religious principles which dominated his life. His business as a “clothier,” in the phraseology of the day, was that of a branch of manufacturing—the finishing of cloths after weaving. It is doubtful whether he met with great pecuniary rewards in his chosen industry. His enemies afterwards said that he left London in debt, to avoid imprisonment threatened by his creditors. Of this there is no valid evidence; we may dismiss it on the authority of his explicit denial.^[12] “I left my native country,” he said, “to enjoy libertie of conscience in respect to faith towards God, and for no other end.”

Samuell Gorton arrived in Boston in March, 1636-7.^[13] A few months before, Roger Williams had been banished from Massachusetts Bay. The Colonial authorities were now agitated by the heresies of Anne Hutchinson and John Wheelwright.^[14] They, in turn, were shortly compelled to seek other dwelling places to secure opportunity for free expression of opinion. Evidently, the liberty of conscience which Gorton sought was not to be safely exercised in Boston. He turned his steps toward Plymouth, the home of the Separatist Pilgrims, hoping there to find the goal of his desires. In Plymouth he hired for four years a part of the house of Ralph Smith, formerly the minister of the Plymouth church, of whom Roger Williams for a brief time had been the colleague. Here Gorton first met the founder of Rhode Island, while on a visit to his former home. Gorton dwelt quietly in Plymouth^[15] for a time, with his family; his wife, Mary,^[16] whom he married in London, of whom he says: “She had been as tenderly brought up as any man’s wife then in town,” his eldest son Samuell, a boy of six years when he left England, his daughter Mary, and one or two other children; and one Mrs. Aldredge, a worthy woman, a widow, and a servant of Mrs. Gorton’s.

It was the latter member of his household who got him into trouble with the Plymouth authorities. She committed the unpardonable sin of smiling in meeting, on what provocation we know not.^[17] Samuell Gorton defended her before the magistrates, and advised her not to appear in person to answer to their charges, which were based upon no express allegations of the violation of law. He vigorously denounced their action as in opposition to those English precedents which the customs of many generations had established for the legal protection of persons unjustly accused of violations of the public peace. For his alleged contumacy and mutinous behavior he

was fined, held under bonds to keep the peace, and sentenced to banishment from the Colony within fourteen days.^[18]

From Plymouth, he made his way to Pocasset, the new settlement which the followers of Anne Hutchinson had begun on the island of Aquidneck, in Narragansett Bay, where he arrived, probably, some time in December, 1638. The weather was cold and the journey perilous. His wife, in delicate health, had an infant at the breast, sick with measles, which “struck in” under the exposure, nearly causing its death. At Pocasset Gorton’s name appears as one of four out of fifty-nine freeholders to which the title of “Mr.” is prefixed, then an indication of social position and gentle birth.^[19] The government of Pocasset was at first theocratic, a judge and five elders constituting its magistrates, who were bound to execute justice “according to the laws of God.” A majority of the community desired a more democratic form of government; and Coddington, the judge (afterwards Governor of the united Colony), with the elders, and a few other freeholders, emigrated to the southern end of the island, where they founded the town of Newport.^[20] The remaining free-holders, including Samuell Gorton, thus forsaken by their magistrates, instituted a new town government, and changed the name of the settlement to Portsmouth. This occurred in the spring of 1639. A year later,^[21] the two settlements were united under one government for the transaction of affairs of common interest, and the influence of Coddington and the Newport magistrates became potent throughout the island. Gorton and his friends regarded this coalition as irregular and illegally constituted. It seems never to have been sanctioned by a majority of the free-holders. He appears to have declined to admit allegiance to it, and to have permitted his citizenship to lapse, though still retaining his residence.

It was not long before he became involved with the Portsmouth authorities in a controversy concerning an alleged assault of his servant on a woman who had trespassed on his land in pursuit of a cow which was also a trespasser. Gorton again defended his servant, and denied the legal constitution and jurisdiction of the court. “They did not have the choice of the people,” he says, “but set up for themselves. I know not any more that was present in their creation but the clergie man who blessed them in their inauguration.” His language was doubtless vigorous and not wholly parliamentary.^[22] His keen sense of justice was outraged by the proceeding, and his sympathetic nature led him to severe retorts upon a witness who, in

his opinion, swore falsely, and the magistrates who were biased in favor of the prosecution. For his alleged mutinous behavior he was imprisoned and again sentenced to banishment. His enemies say that he was also whipped,^[23] but the Portsmouth records, which are explicit in reciting the charges and the other penalties, make no mention of this infliction. There is evidence, also, that he had many friends and sympathizers in the settlement. One of these, John Wickes, for refusing to testify and denying the legality and jurisdiction of the court, was placed in the stocks, and with four others was banished and disfranchised.^[24]

The little circle of congenial and independent souls was growing under persecution. From Portsmouth they pressed on to Providence, and though apparently seeking to avoid rather than to encourage controversy, they soon became involved in disputes which had already divided that settlement into two parties.^[25] I shall not enter into the merits of this controversy, which involved civil and not religious questions. As in Portsmouth, Gorton denied the legality of the self-constituted town government, and held that justice could not be maintained until the law was administered under authority delegated by the Mother Country. He was as anxious as any for liberty, but he would have liberty protected by law. As an Englishman, dwelling in a community of Englishmen, he claimed the protection of those principles of law and equity, which, since Magna Charta, had been thrown around all British citizens. For a time his vigorous maintenance of this doctrine brought him in conflict even with Roger Williams, who, Winthrop says, accused Gorton of “bewitching and bemadding poor Providence” with his new and radical opinions.^[26]

Gorton and his friends purchased land and commenced a settlement at Popaquinepaug, or Pawtuxet, within the jurisdiction of Providence; but certain of his enemies who owned adjoining property determined to prevent his peaceful occupancy. William Arnold and a few others, to insure his expulsion, gave in their allegiance to Massachusetts, and called on the government of that Colony to remove the intruders. This, however, is by no means to be regarded as an official action of the town of Providence, or as in accordance with the desires of a majority of her citizens. It is probable, in fact, that a majority were sympathizers with Gorton.^[27] Nevertheless, not from mere pusillanimity, but out of a desire for peace, and a disinclination to embroil Providence with her more powerful neighbor, the Gortonists moved on, beyond the jurisdiction either of Providence Plantations or of

Massachusetts. Gorton purchased of Miantonomi, head sachem of the Narragansetts, and of Pomham and Soccononocco, under-sachems claiming local jurisdiction, a tract of land south of Pawtuxet and west of Narragansett Bay, then known by the Indian name of Shawomet.^{[\[28\]](#)}

IV

TROUBLOUS TIMES AT SHAWOMET

Not yet, however, were the harassed Gortonists to be secure in their possessions. Pomham and Soccononocco were induced by the enemies of Gorton to repudiate their signatures to the deed of Miantonomi. They made their submission to the government of Massachusetts and begged its aid to expel the Gortonists from Shawomet.^[29] There are some reasons to believe that this action was not altogether disconnected from a possibly more remunerative offer made them by the Atherton Company, an organization which had been formed by the astute Commissioners of the New England Confederation, for the purchase and sale of Indian lands.^[30]

Gorton and his companions were summoned to Boston to make answer to Pomham's claim.^[31] Denying the jurisdiction of Massachusetts, in a spicy correspondence, Gorton refused to obey the summons. Increase Nowell, Secretary of the Colony, and the Boston Elders, discovered no less than twenty-six instances of blasphemy, "or thereabouts," in the terms of Gorton's epistle. The Gortonists were warned that if they continued contumacious they would be regarded as "fitted for the slaughter,"^[32] and would be peremptorily dealt with by force of arms. A company of twenty white men and an equal number of Indians, under the command of Captain Cook, was dispatched to seize them and bring them to Boston for trial. On their approach, the Gortonists sent their women and children across the bay, retired to their block-house on Conimicut Point, and awaited the invading force of the enemy. A company of peace-makers from Providence^[33] demanded a parley, and proposed the arbitration of the matters in dispute, to prevent the shedding of blood. The Gortonists appealed to the King and were willing to arbitrate, but the proposition was sternly rejected by Gov. Winthrop. "You may do well to take notice," he said, "that besides the title to land between the English and the Indians there, there are twelve of the

English that have subscribed their names to horrible and detestable blasphemies, who are rather to be judged as blasphemous than they should delude us by winning time under pretence of arbitration.”

The Gortonists stood siege for a day and a night,^[34] and repelled the attempt of the men of Massachusetts and their savage allies to set fire to the block-house; then, to save bloodshed, under promise that they would be treated as neighbors, and that their claims would be submitted to fair judgment in Massachusetts, they surrendered to superior force, and were taken to Boston for trial.^[35] They speedily found, however, that they were regarded as prisoners and not as “friends and neighbors” seeking a just and amicable settlement of civil disagreements. The soldiers, Gorton says, were ordered to knock down any one who should utter a word of insolence, and to run any one through who might step aside from the line of advance. When they arrived in Boston, “the chaplain (of their captors) went to prayers in the open streets, that the people might take notice that what they had done was done in a holy manner, and in the name of the Lord.”^[36]

There was no pretence of a judicial consideration of their rights as settlers at Shawomet. They were regarded as criminal offenders, and were examined and convicted on the charge of blasphemy. Gorton was placed on trial for his life before the General Court and Convocation of Elders. Four queries, referring to statements in his vigorous rejoinder to the summons of the Massachusetts authorities, were propounded, and upon his replies the decision of the Court was to be rendered:^[37]

“1. Whether the Fathers, who died before Christ was born of the Virgin Mary, were justified and saved only by the blood which hee shed, and the death which hee suffered after his incarnation?

“2. Whether the only price of our redemption were not the death of Christ on the cross, with the rest of his sufferings and obediences, in the time of his life here, after hee was born of the Virgin Mary?

“3. Who was the God whom hee thinks wee serve?

“4. What hee means when hee saith, wee worship the starre of our God Remphan, Chion, Moloch?”

The latter question may well have piqued the curiosity of the elders. The others were evidently framed to secure conviction. His replies were as wise and conciliatory as perfect sincerity would admit, but it was foreordained that they should be unsatisfactory to his judges. All but three of the elders voted for the penalty of death. The representatives of the people, however,

to the honor of Massachusetts, refused to assent to this verdict^[38]. Gorton suffered imprisonment in Charlestown, with a ball and chain attached to his ankle; the other accused persons were incarcerated in irons in other towns of the Colony. The next General Court, some months later, set them at liberty,^[39] but banished them from all places within the jurisdiction of Massachusetts—the intention being to include the disputed territory at Shawomet, which Massachusetts claimed under the deed of Pomham.

As they went forth from their prison houses, the Gortonists recited their wrongs in the public streets in Boston and elsewhere to crowds of willing listeners and ready sympathizers. Palfrey admits that a majority of the people in Massachusetts were to be counted in this category.^[40] The sufferings of these martyrs were the seeds of a new Commonwealth, from which the persecuting spirit was at last eliminated. The Indians, also, even in the vicinity of Boston, received them gladly. Cutshamekin, the chief sachem of the neighborhood, to whose wigwam the liberated men accidentally strayed, when asked by Gorton whether Capt. Cook, the commander of their captors, was a good captain, replied, “I can not tell; but the Indians regard those as good captains when a few stand out against many.”

Their chief grievance during imprisonment seems to have been that they were compelled to attend the Sunday services in the churches, and be “preached at” by the Puritan ministers. “They brought us forth unto their congregations to hear their ministers,” says Gorton, with a grim humor, illuminated by some knowledge of natural history, “which was meat to be digested, but only by the heart or stomacke of an ostrich.”^[41] Pastor Ward, of Ipswich, who visited one of them—Richard Carder, an old neighbor of his in England—while in prison, and urged him to recant his heresies, said by way of encouragement, “it shall be no disparagement to you, for here is our revered elder, Mr. Cotton, who ordinarily preacheth that publickely one yeare, that the next yeare hee publickely repents of, and shows him selfe to bee very sorrowful to the congregation.”^[42] As his sly dig at Mr. Cotton would indicate, Pastor Ward was entirely sound in his own theology. This appears also in his “Simple Cobbler of Agawam,” where, with a spicy use of capitals, and vigorous if not elegant English, he denounces the brains of those who advocate “Libertie of Conscience in matters of Religion,” as “parboiled in impious ignorance.”

V

SHAWOMET BECOMES WARWICK

After his release, in the spring of 1643-44, Gorton returned through Shawomet, where he was forbidden to linger, to Portsmouth, where he and his friends were received with open arms, and where he was shortly elected to a magistracy on the very scene of his former persecutions.

Thus far the Atherton Company appeared to have made substantial progress in its efforts to obtain possession of the Shawomet lands, and Massachusetts seemed likely to succeed in throwing a girdle of unfriendly possessions around the Providence Plantations, thereby separating them from the Aquidneck settlements, and securing a permanent control over Narragansett Bay. By the submission of Arnold and the malcontents of Providence, they had obtained a show of authority over the Pawtuxet or Popaquinepaug territory. Winthrop had secured possession of Prudence Island in Narragansett Bay by purchasing the half originally owned by Roger Williams,^[43] and now with a marvellous inconsistency, held the whole by a title derived solely from Miantonomi, the chief sachem of the Narragansetts. If he could maintain his denial of the rights of Gorton to the Shawomet lands claimed by even a stronger title, he would succeed in his efforts to divide the Narragansett settlements and establish the claims of Massachusetts. With this end in view, the Massachusetts authorities built a block-house for Pomham on Warwick Neck, and temporarily succeeded in excluding the Gortonists from their Shawomet possessions.

Gorton, however, was not idle. He had no thought of permanently relinquishing the claim for which he had contended so bravely, and to which he was justly entitled. Within forty days of his release from prison, by a masterly piece of strategy and statesmanship, he inaugurated measures which completely check-mated his opponents, and gave him a permanent advantage in the contest for supremacy. On the 19th of April, 1644, by the

earnest advice and solicitation of Gorton, the Narragansett Indians, in solemn conclave, constituted their “trusty and well-beloved friends,” Samuell Gorton, John Wickes, Randall Holden and John Warner, commissioners to convey their submission to the British Government. The deed of submission, signed by the sachems Pessicus, Conanicus, Mixan, Awoshosse and Tomanick, is preserved in the Historical Cabinet at Providence. The tragical death of the head sachem, Miantonomi, in the previous September, at the hands of his bitter enemies, the Mohegans, with the consent of the Boston elders—a story so well told by Dr. Fiske in his “Beginnings of New England” that I need not repeat it here,—as well as the revolt of Pomham and Soccononocco, were powerful arguments with the Narragansetts in favor of seeking the protection of the British Government; while the return of Gorton and his companions, unscathed, from the prisons of Massachusetts, convinced the Narragansetts that the power of the Mother Country was on their side, and had stood between them and their oppressors.

In August, 1645, the Commissioners of the United Colonies, in session in Boston, declared war against the Narragansetts, and dispatched a military force to Rhode Island; at the same time warning the General Assembly of Providence Plantations, then in session at Newport, that if they adhered to their declared determination of maintaining a position of neutrality they would be regarded as enemies. They also forbade them to exercise the powers of government under the charter obtained by Roger Williams.

In response to this threatening action of “the Massachusetts,” Gorton, Greene and Holden set sail, after vexatious delays, under authority of Providence Plantations, from the Dutch settlement at Manhattan for Holland, whence, after more delay, they obtained transportation to England. The exact time of their arrival at London is unknown, but they had been preceded by the agents of Massachusetts, and were compelled to meet the charges already formulated by their enemies. Their answer, prepared by Gorton in “Simplicities Defence,” was published in London on the 3d of August, 1646. Soon after,^[44] a patent was issued to Gorton and his colleagues which granted the Shawomet lands to them and their successors forever, and guaranteed them protection against all other claimants. In the troublous times between the King and Parliament the formal submission of the Narragansetts which Gorton had conveyed to England, could not be delivered to King Charles in person, and Gorton accordingly caused it to be

published in London. By this admirable piece of strategy and statesmanship he forever blocked the movements of Massachusetts Bay for the control of the Narragansett country. Gorton received safe-conduct from the Earl of Warwick, on his return, through the domains of the enemy.^[45]

Roger Williams, who had finally accepted Gorton's theory of the true foundations of the new government, had preceded him to England, and on the 14th of March, 1643-44, had obtained a charter for the Colony which united the northern and southern towns in one Commonwealth. Owing to the opposition of the Coddington faction, government was not completely organized under this charter until May, 1647.^[46] In the same year, town government was organized at Shawomet, the Town, in honor of its patron, receiving the name of Warwick. Some further futile attempts were made by Massachusetts to enforce her claims, but the Gortonists thereafter retained possession, which gave them "nine points of the law," and finally complete victory. Pomham, for whom Massachusetts had erected a block-house on Warwick Neck, lingered in the neighborhood a few years, but at last saw that the "Gortonoges" had triumphed in their long contest with the "Wattaconoges,"^[47] and in 1665 sold out his dishonored claim for £30 in peage,^[48] paid him by Gorton and his associates. The new Commonwealth was fairly launched upon the sea of History; the town of Warwick and its founder were to play an honorable part in the story of its beginnings.

VI

SAMUELL GORTON'S LATER CAREER

During the succeeding quarter of a century Samuell Gorton was active and influential in shaping the destinies of the growing State. He occupied the highest places of honor and responsibility at the gift of his fellow-citizens, and was habitually called into service when sound judgment, prompt and courageous action, and literary ability were requisite. He represented Portsmouth in the Assembly at Newport in 1645. He was chosen one of the Commissioners of the town of Warwick to the General Assembly on his return from England, and served therein a greater part of the time for the next two or three decades. He was placed on the most important committees, and his pen was frequently called into requisition to prepare State papers, and letters to the magistrates of other Colonies, and to the representatives of the new Commonwealth in England. Though absent in the Mother Country during the first year of Colonial Government under the charter of 1643-44, his political views were embodied in the remarkable Code of 1647, passed by the first General Assembly of the United Colony, one of the earliest compilations of law in American history. In the construction of this Code, care was taken to avoid the errors of which Gorton had complained, in the judicial procedure of the other Colonies, by making each section conform to existing English law,^[49] reference to the corresponding English statute being placed at the end thereof.^[50]

The provision respecting witchcraft is especially noteworthy as indicating a prevailing scepticism in Rhode Island at a time when Massachusetts was under the spell of the delusion, soon to break forth in an appalling epidemic of persecution. The object of its introduction is evidently the set purpose of conforming to English precedents rather than a conviction of the legislators that the statute was demanded by any real public necessity. The section reads:

“Witchcraft is forbidden by this present Assembly to be used in this Colonie; and the Penaltie *imposed by the authoritie that wee are subjected to, is felonie of death.*—I Jac. 12.”^[51] The Code of 1647 also forbade imprisonment for debt, and is otherwise in advance of most contemporary legislation. The temper of the Colony on the subject of witchcraft is still further evidenced in the testimony of their opponents,^[52] who complained in an anonymous letter addressed to the agent of Massachusetts in England a few years later, that the new government was ignoring the English law. This epistle especially stigmatized “some of them at Shawomet that cryeth out much against them that putteth people to death for witches, for they say there be no other witches upon earth, nor devils, but your own pasters and ministers, such as they are.”^[53] There was apparently never a prosecution in Rhode Island under the statute against witchcraft.

Samuell Gorton’s literary style is clearly evident in the remarkable statute against negro slavery, passed by the General Assembly in 1652—the first legislative edict of emancipation ever adopted in America. This statute was passed during the Coddington secession of 1651-54, and consequently voices officially only the sentiment of Providence and Warwick. Roger Williams was in England at the time of its passage, and there can be little doubt that Samuell Gorton was its author and principal advocate. Though it subsequently became a dead letter, it was apparently never repealed, and merits perpetuation in the annals of the anti-slavery conflict. It reads as follows:

“Whereas there is a common course practised amongst English men to buy negers, to the end that they may have them for service or slaves forever; for the preventinge of such practices among us, let it bee ordered, that no blacke mankinde or white, being forced by covenant bond or otherwise, to serve any man or his assigns longer than ten yeares, or untill they come to bee twentie four yeares of age if they bee taken in under fourteen, from the time of their cominge within the liberties of this Collonie. And at the end or terme of ten yeares to sett them free as the manner is with the English servants. And that man that will not let them goe free, or shall sell them away elsewhere to that end that they may bee enslaved to others for a long time, hee or they shall forfeit to the Colonie forty pounds.”^[54]

Samuell Gorton was elected General Assistant, a position corresponding with that of Lieutenant Governor, in 1649, and in 1651, during the

Coddington secession, he was chosen to the highest position at the gift of the Commonwealth—he became its President. During the following year, he was Moderator or Speaker of the General Assembly, and he several times subsequently served as General Assistant. He was also active in the affairs of the Town of Warwick, being for many years a member of the Town Council, and holding other positions of honor and responsibility. “After the venerable founder of Providence,” says his biographer,^[55] “no man was more instrumental in establishing the foundations of equal civil rights and ‘soul liberty’ in Rhode Island than Samuell Gorton.” He was especially active in assuring the protection of the Colony for the persecuted Quakers.^[56] He sent them messages of sympathy when they were in prison in Massachusetts, and was authorized by the General Assembly to reply to the epistles of the Massachusetts authorities protesting against their finding an asylum in Rhode Island. When Massachusetts appealed to England, Samuell Gorton was designated to prepare a letter on behalf of the Rhode Island Government to John Clarke, the representative of the Colony in the Mother Country, to be presented to the Lord Protector, Oliver Cromwell. He requests Clarke “to plead our case in such sorte as wee may not bee compelled to exercise any civill power over men’s consciences, so long as humane orders in poynt of civility are not corrupted and voyalated, which our neighbors aboute us doe frequently practise, whereof many of us have large experience, and doe judge it to bee no less than a poynt of absolute crueltie.”^[57]

On the collapse of the Puritan Commonwealth in England, Samuell Gorton was appointed on a Committee to select agents of the Colony in England, and prepare an address to his Majesty, King Charles the Second.^[58] As a result of this action, and of the wise intercession of John Clarke, then representing the Colony in England, the Charter of 1663 was secured, in which Samuell Gorton was named as one of the incorporators of the new Commonwealth. In 1663 he was also appointed by the Town Council “overseer” of the will of John Smith, Deputy from Warwick, under the curious provision by which the towns in Rhode Island made wills for persons dying intestate, dividing their property according to the communal sense of justice. In 1666, after the purchase of Pomham’s claim, Mr. Gorton was assigned ten shares in Warwick Neck, and was still further recognized in another division in the following year.^[59] In 1675, during the storm and stress of King Philip’s war, tradition says that Samuell Gorton’s life was

saved by friendly Indians, who rowed him across the Bay to a place of safety. He was always on amicable terms with the aborigines, treating them justly, teaching and exhorting in their settlements, and wisely advising them in various emergencies.

Warwick suffered severely in the contest with King Philip, which would doubtless have been prevented had the policy of Roger Williams and Samuell Gorton in dealing with the Indians been generally adopted. The town was depopulated, the houses and barns were burned, and the cattle driven into the wilderness. A pitched battle was fought in an open cedar swamp in Warwick between the Indians under Canonchet and a company of men from Plymouth.^[60] Many of the colonists took refuge on Aquidneck, the waters around which were patrolled night and day by a flotilla of four boats, filled with armed men.

Judge Staples tells us that John Wickes, the friend and colleague of Samuell Gorton, trusting too implicitly to the friendship of the savages, remained and was slain; his head being set upon a pole as a warning to others. In this, he must be mistaken, however, since the will of John Wickes, dated the second day of March, 1688, and signed by himself, though written and witnessed by Samuell Gorton, the younger, may be seen to-day in the library of the Historical Society in Providence. This interesting document also contains the signatures of two others of the founders, of Warwick,—Randall Holden, the justice before whom it was proved, and John Greene, who signs in behalf of himself and the other members of the Town Council.

On the fourth day of June, 1677, probably the year of his death, Samuell Gorton, Senior, was elected “to the Towne Counsell for the ensuing yeare,” as the ancient records tell us, and his son, Capt. Samuell Gorton, was at the same time chosen Town Treasurer. On the 20th of July the father signed a deed of lands owned by him in the Narragansett Country to his sons, his six daughters and their husbands also being remembered in the disposition of this property; and on the 27th of November of the same year, by another deed, he divided his entire remaining estate among his three sons, Samuell, John and Benjamin.^[61] To the former, who was evidently a man after his own heart, and who had aided in supporting the family, he gave his homestead at Old Warwick, his household furniture, library and most precious literary possessions. He also committed to him the care of his mother during her widow-hood, providing that she should be maintained

with convenient housing and necessities, and that means should be furnished for her “recreation in case she desires to visit her friends.”^[62] His lands at Coweset, beyond the boundaries of the Shawomet grant, he gave in equal possession, undivided, to his three sons. The document attesting the final division of these lands by the surviving sons, Samuell and John, bears date on the town records, Dec. 4, 1699, being executed, as it says, “according to the expressed wish of our Ancient and Honored ffather, Mr. Samuell Gorton, one of the first settlers of this Plantation of Warwick in New England.” His son Benjamin, then deceased, had been one of the founders of the new town of East Greenwich, the organization of which dates from the year of the original bequest.

VII

SAMUELL GORTON'S POLITICAL PHILOSOPHY

The enemies of Samuell Gorton charged that he was a practical anarchist—a denier of all governmental authority. As the indictment of the Massachusetts magistrates reads: “Upon much examination & serious consideration of yo^r writings, & with yo^r answers about them, wee doe charge yo^u to bee a blasphemous enemy of the true religion of o^r Lord Jesus Christ and his holy ordinances, & also of all civil authority among the people of God, perticularly in this iurisdiction.”^[63] To the impartial student of this history, his entire career offers a sufficient answer to this accusation. Even Gov. Arnold, his lineal descendant and strenuous defender in many things, who regarded him as “one of the most remarkable men who ever lived,”^[64] falls into the error of stating that “he denied the right of a people to self-government.”^[65] What Samuell Gorton really denied was the dogma of “squatter sovereignty,” that false conception of popular government which holds that a majority of the actual settlers in any given locality have a right to legislate and govern as they please, without regard for the claims of the minority, the law of civilized communities, or the principles of equity and justice. Had he lived a generation ago he would have stood with Lincoln and Sumner and Garrison in denouncing this mischievous dogma. His doctrine was identical with that of the defenders of the Union against the alleged right of secession. In his own day he held, simply, that no Englishman expatriated himself by becoming a colonist in the possessions of the Mother Country; that he did not by emigration to America forfeit the rights of an Englishman, or the protection guaranteed by the long line of statutes, decisions and precedents, beginning with Magna Charta, which had become the heritage of Englishmen everywhere.

Samuell Gorton held that as subjects of Great Britain the Colonial governments should conform in their legislation and judicial action to the

principles of English common and statute law.^[66] If chartered, they were bound to do this by the terms of their charters. If not chartered, each individual had the right to claim the protection of English law, and any denial thereof was a usurpation of authority. This was the head and front of his alleged anarchism. It was not anarchism, but the conviction that liberty is a chimera save under the protection of the sacred majesty of law. This is good English and American doctrine to-day. It is distinctively Rhode Island doctrine. No one two hundred and fifty years ago saw it more clearly than Samuell Gorton. His political vision was more lucid and prescient than that of Roger Williams, though the latter soon saw the force of Gorton's position, and adhered to it the rest of his life. Had Gorton lived until the time of Andros and James the Second he would have beheld the Colonies fighting for their charters as the very foundation of their liberties. His position was already justified.^[67]

In defence of "soul liberty" and the limitation of the functions of government solely to civil affairs, Gorton and Williams stood side by side from the beginning. Authority, he says, cannot safely be entrusted to magistrates "if their place and office bee not bounded within the compass of civill things." He argues clearly and logically in the introduction to his "Incorruptible Key, Composed of the CX Psalme," that if magistrates are permitted to extend their authority to things spiritual they are consistently bound to enforce their own convictions of religious duty, and to persecute all who dissent therefrom. The only safety is in forbidding them "to intermeddle between God and the consciences of men. * * In that way only is the preservation and honour of all States, in their several ways of rule and government."

This theory, for the first time in the world's history, was clearly proclaimed, embodied in constitutional law, and practically tested, in the Commonwealth founded by Roger Williams and Samuell Gorton. The Puritan theocracy and the doctrine of "soul liberty" for a time maintained a competitive existence, side by side in the New England Colonies. The latter began in relative weakness—almost in anarchy—but it survived, and ultimately obtained recognition in our Federal Constitution. The former failed, and was practically discarded in less than two generations. Connecticut, an offshoot from Massachusetts Puritanism, under the leadership of Hooker reversed the Massachusetts theory that citizenship should be conditioned on church membership, and absorbed the theocratic

Colony of New Haven. Rhode Island gained, in numbers and in internal cohesion, and Massachusetts lost, with every attack which she made on heresy. The idea that intolerance and persecution were necessary to insure the survival of the community—to prevent its disintegration—broached by apologetic writers, is therefore disproven by the palpable facts of history. Disintegration and secession were ever the products of intolerance. The story of the Saracens, in Spain, the Huguenots in France and the Puritans in England, was repeated in Massachusetts. Internal schisms were promoted rather than prevented by the policy of persecution.

In the end, local public opinion was a powerful aid to the compulsion of the Mother Country in compelling the cessation of persecution. The policy of intolerance failed on its own chosen ground, and Massachusetts became a powerful and united State only when she followed the example of her despised Little Sister and became a Commonwealth of Ideas as well as a Commonwealth of Goods.

VIII

SAMUELL GORTON'S RELIGIOUS CONVICTIONS

Samuell Gorton was a man of a profoundly religious nature. His views, have been little studied, and have been greatly misunderstood, both by his contemporaries and the historians of later generations. John Fiske dismisses him with a sentence, in his admirable *School History of the United States*, as “a man of queer ideas.” The more extended reference of this fair-minded historian, in his “*Beginnings of New England*,” hardly does justice either to Gorton’s political sagacity, or to the remarkable character of his religious opinions. Charles Francis Adams, in his monograph on “*Massachusetts, its Historians and its History*,” alludes to Samuell Gorton as a “crude and half-crazy thinker.”

His contemporaries in Massachusetts assailed him with a choice collection of opprobrious epithets in the place of arguments: he was an “arch-heretic,” a “beast,” a “miscreant,” a “proud and pestilent seducer,” a “most prodigious minter of exorbitant novelties.”^[68]

Edward Rawson, some time Secretary of the Colony of Massachusetts Bay, and the ancestor of my own children,—a man capable of making vigorous use of the sturdy Anglo-Saxon of the period, albeit not always grammatically, denounces him as “a man whose spirit was stark drunk with blasphemies and insolences, a corrupter of the truth, a disturber of the peace wherever he comes;” and his contemporary, Nathaniel Morton, with whom he conducted an animated correspondence, says he “was deeply leavened with blasphemous and familistical opinions.”

In so far as his religious views have received attention in recent years, they have been mainly studied in their incomplete and incidental expression in some of his published works, “*Simplicities Defence Against Seven-Headed Policie*,” and “*The Incorruptible Key to the CX Psalme*,” the main object of which was political and polemical rather than expository of his

system of thought. The involved style and quaint and mystical phraseology have repelled the modern student, and prevented a clear understanding of his theological doctrines.

By far the best and most complete exposition of Samuell Gorton's religious convictions is to be found in a remarkable manuscript in his own hand-writing which has never been published, but which is preserved in the library of the Rhode Island Historical Society in Providence. I am indebted to the Hon. Amos Perry, the courteous Librarian of the Society, for the opportunity to make a careful study of this paper as well as of other documents relating to Samuell Gorton's life and work. The manuscript to which I refer is a running commentary on the Lord's Prayer. Merely as a literary curiosity it merits the attention of the studious and curious. It is in the clear, careful, accurate hand-writing of the scholar rather than of one accustomed to manual industry. The lines are closely written, the characters are minute, and almost as accurate as copper-plate impressions. The manuscript averages over two thousand words to a page about the size of our modern legal cap. The character of the writing makes it exceedingly trying to the eyes. The orthography, though in some respects archaic, is more regular and consistent than in most American documents of our Revolutionary era. I have examined many papers of contemporary and more recent dates, but with the exception of those left by his eldest son, Capt. Samuell Gorton, who was evidently instructed by his father, and whose hand-writing resembles his so closely as to be distinguishable from it with difficulty, I have never seen any so clear, systematic, and scholarly in appearance. The literary form, however, is less admirable than the clerical execution. The style is involved, the sentences are long, and the punctuation, though systematic, is peculiar. Free use is made of the comma, semi-colon and parenthesis, but periods are most economically distributed, being used literally to indicate a "full stop." Sentences usually end with a semi-colon, the ensuing clause beginning with a capital. The interrogation point was apparently unknown.

When the reader has searched diligently beneath the quaint and involved phraseology, bristling with scriptural references and illustrations, and come into sympathetic contact with the living thought of the writer, the surprising thing which is discovered is the remarkable modernness of many of Samuell Gorton's ideas. It goes without saying that he was not "orthodox" according to the conventional standards of his time, nor yet, perhaps, of our

own; but we everywhere touch the personality of a vigorous and independent thinker, who in many directions foreshadowed the views of the advanced thinkers of a later day.

Some of his enemies denounced Samuel Gorton as an atheist. He was as remote as possible from atheistic leanings. He was not even affiliated with the deism of his own and the succeeding century. His theology was profoundly Christian. It was as Christocentric as that of Swedenborg, with which it has sometimes been compared. Like Swedenborg, he regarded the Infinite and Absolute as *per se* unknowable. Here both Gorton and Swedenborg are in touch with the modern philosophical agnostic. For both, however, Christianity solved the agnostic problem. In Christ they found a perfect expression of the divine nature, and the only rational object of worship.^[69]

With regard to the nature of Christ, however, Gorton and Swedenborg were widely separated. Swedenborg's theology is boldly anthropomorphic; Gorton's was monistic and impersonal. "The word 'person'," he says, "is only borrowed from men and translated to God. * * That doctrine which ties the death of Christ to one particular man in one time and age of the world, as being the scope and intent of God's will concerning the death of his son in the salvation of the world, that doctrine falsifies the death of Jesus Christ, and sets men upon the law of works in the ground and matter of their salvation, by which law no man is justified."^[70] Here, too, is another radical distinction between his doctrine and that of Swedenborg. The latter turns his most powerful batteries upon Paul's doctrine of "justification by faith," while Gorton stands with Luther in its defence.

The "law of works" by which Gorton says no man is justified, he rightly interprets as the conception of salvation through ceremonial observances; not merely the ritual of Pharisaic Judaism denounced by the Master, but the ritual and ordinances as well of his own day and generation. Here he stands with the Friends, as he also did in his opposition to a "hireling ministry." Worship, he taught, is natural to man. Every man is called to seek communion with the divine in Christ directly, and not through priestly mediations. "Prophesie, prayer, and interpretation of the word of God are one," he says: "where one is there is the other; they are co-insident and co-aparant." All men are naturally moved to prayer; all men, therefore, may rightfully exhort and interpret. To the conventional interpretations of churches, universities and schools, he preferred "the universitie of humane

reason, and reading of the great volume of visible creation.” Mr. Gorton defined prayer as “nothing else but the true breath and spirit of the eternall word, according to God’s intent taken and rained into the soule, concocted and digested in the cauldron of man’s necessities, breathing out it selfe unto the fountaine and originall of all suply.”

The spirit of prophecy and inspiration, he taught, is as immediately with man now as in any period of the past. The tenor of his teaching in this particular is strikingly like that of the modern transcendentalist. With Emerson, he would have asked, “Why may not we, too, seek an original relation with the Universe?” In the spirit of transcendentalism, too, he opposed all sectarianism. He would not be the founder of a sect. He left no organized body of disciples.^[71] The sectarian contests of the day, even the disputes between Protestants and Catholics, he deemed of small account because they were so largely about rites and ceremonies, matters which he deemed non-essential. “These things men contend aboute and make great stirre in the world, whilst the life and spirit of the gospel lies buried under humane ordinances and carnall traditions.” True worship, he declares, is as well exemplified in the offering of lambs and bullocks “according to the letter of scripture formerly manifested, * * as in bread, wine, wafers, &c., or in Bishop, paster, teacher, elder, deacon, &c., for these things in the outward forme simply considered are carnall and momentary, but the words of Christ, they are spirit and they are life.”

While he agreed with the Friends as to outward ordinances, Samuëll Gorton strongly contested some of their other teachings, especially the doctrine of the “inner light,” which he saw might be interpreted as a particular revelation of infallible truth to the individual.^[72] Such an assumption, he claimed, is mischievous and erroneous. All revelations must appeal for examination, recognition and interpretation to the natural human reason, which is a common possession of all men. Mr. Gorton combined with a remarkably equable balance, the methods of the mystic and the rationalist. His mysticism rejected all claims of infallibility, which logically tend to the persecution of dissidents. Yet, while he carried this idea so far that he would dispense with all paid ministries, he recognized more fully than most Protestants of his day the necessity of sound learning and thorough acquaintance with the Scriptures in their original tongues, to assure their correct and valid interpretation.^[73]

Though in the highest degree Christocentric, Samuel Gorton's theology was not in harmony with the prevailing Trinitarianism of his day. The doctrine "received from the schoole men of the church of Roome, that hold and teach a trinitie of persons in one simple and divine essence, without having respect for the humane nature of Christ," he characterizes as "a most dangerous and pernicious doctrine." It is, he says, "most derogatory to the glory of the son; for in that time he is deprived of the glory of a saviour; for without man's nature hee is not Jesus; hee is no saviour but in man; hee is not the anointed nor the redeemer but in man's nature; and if wee deprive him of that glory for a time it is to late to give it to him afterwards, because hee ever remains one and the same." The scriptural references to the Father, Son and Holy Spirit he interprets as recognitions of "spirituall distinctions in the nature of Christ." They are not separate persons of a god-head, but distinctions of the divine activity, having a unity "not found elsewhere, but only in Christ."^[74]

With Channing, Samuel Gorton also taught the essential divinity of human nature—the equal nearness of the divine spirit to the sinner and to the saint. He recognizes a divine spark in every human soul, and to this he made his appeal.^[75] He also, however, accepted the eternal antagonism of good and evil as an unquestionable fact both in scriptural teaching and in human experience. The tendency of the one is to eternal life; of the other to eternal death. He therefore taught a conditional immortality, wholly dependent upon the character of the individual. "Neither can any salvation hold proportion with the son of God," he says, "but freedom from sin." This saved him from the errors of Antinomianism.^[76] The doctrine of imputed sin and imputed righteousness he denounces as unworthy of the divine character. "God was in Christ reconciling men unto him selfe, not imputing their sins." Nor is this work of reconciliation limited to any historical period. "God is eternally a creator, eternally a redeemer, eternally a conservator of peace."

The substance of his teaching is that righteousness *is* life eternal; sin *is* eternal death. This is no arbitrary penalty inflicted at the close of man's earthly career, or on some future day of judgment; it is the intrinsic and natural result of evil action. The popular distinction between a man and his actions is delusive and unreal. He could not hate the sin and love the sinner. The actions *are* the man. If the actions are predominantly evil there is nothing left to save. The divine work of regeneration is at one and the same

time the salvation of the good and the destruction of the evil. Both results are effected by one and the same natural operation of the divine power. "The righteousness of God is of eternal worth and duration; But the one and the other [course of life] being wrought into a change at one and the same time, thence comes the capacity of an eternall life, and of an eternall destruction."

Mr. Gorton distinguishes four distinct stages in the historical development of religious ideas: the family, the national, the apostolic, and the spiritual or universal.^[77] Considering the period in which he wrote, and the fact that the Bible seems to have been almost his only text-book, his conclusions are remarkably consistent with those of modern students of sociology and comparative religion.

The temptation is great to continue this line of exposition and quotation, but I must bring it to a close with one or two additional passages further illustrative of the ethical quality of his thought. All virtue, he taught, even the goodness of God, consists wholly in the service of others. "The goodnesse of God's nature is such," he says, "that it cannot subsiste or bee without communicating it selfe with another, otherwise his goodnesse should bee uselesse, which can not bee admitted for one moment of time, for there is an impossibility thereof; The naturall temporary or tipicall goodnesse of any creature is uselesse unlesse it bee communicated with another; God never made any creature in heaven or in earth simply for it selfe, but for the use of another; how infinitely more is this true of God, who hath made him selfe in Christ to bee the goodnesse of the world."

Heaven, Samuell Gorton taught, is not to be sought in a future life or in some distant part of the universe. The soul is even *now* in eternity. Heaven is a condition of the soul. It may exist here and now. "Such doctrine," he says, "as sets forth a time to come, of more worth and glory than either is, or hath been, keeps the manna for tomorrow, to the breeding of worms in it." With Theodore Parker, he taught that the divine nature is both masculine and feminine;^[78] and in one of the most striking and eloquent passages in his Commentary on the Lord's Prayer he argues for the equal recognition of woman in the Church, and as a teacher of religion.

In philosophy, Samuell Gorton was an original thinker rather than a student of past systems. In theology, he was far in advance of the prevailing thought of his time. Only a few of the minor sects of our own day have yet approximated to his views as to the equal position of woman in the pulpit

and the church; only an occasional strong and independent mind has reached his conception of religion as a birthright of the individual soul, to which belongs the unalienable privilege of investigation and interpretation, free from priestly mediation and sectarian bias.

IX

CONCLUSION

In conclusion, what shall we say were the peculiar and distinctive contributions of Samuell Gorton to the Commonwealth which he helped to found, and the life of our later day? I answer, first, to him more than to any other we are indebted for the recognition and establishment of the principle that English law and the rights of English citizenship are coextensive with English supremacy; and that to secure these rights in the Colonies, together with the privileges of local administration, a charter from the Home Government was necessary. This principle had been ignored or denied by Roger Williams,^[79] and violated by the governments of Plymouth and Massachusetts Bay. Samuell Gorton affirmed it in season and out of season; in its defence suffered imprisonment and stripes, and did not rest until by the aid of Roger Williams at last convinced by his insistency and by the stern logic of events, it was accepted by the Commonwealth, affirmed in its Charter, and embodied in its legislation.

So firmly was this principle subsequently engrafted on our Colonial system, that it became our strongest defence against the encroachments of the Mother Country during the Revolutionary struggle and gave us an effective *pou sto* for the Declaration of Independence. Nor did the severing of the relations with the government of England rupture this thread of law and equity which bound us to our historic past. Ours became the heritage of English Common Law: ours as well as England's those historic rights and privileges of citizenship handed down from Magna Charta.

I answer, secondly, to Samuell Gorton more than to any other, all generations of Americans will owe the insistent affirmation and consistent illustration of the principle of religious individualism which is the logical outcome of the Protestant idea—the principle which strips off the conventional reliance on ritual and organization, and places the individual

soul face to face with the problems of life and duty. In our own generation, Ralph Waldo Emerson has been the clearest exponent of this principle. Gorton was the premature John the Baptist of New England Transcendentalism.

No portrait, or adequate description of this forgotten Founder of our Liberties has been handed down to our time. The writer of his brief biography tells us that “His bearing was courteous, his feelings lively, his mind vigorous and well-informed.”^[80] From such hints as we may obtain from various sources we may picture him as a man of tall stature, marked features and gentlemanly address; blue-eyed—a typical Saxon; of an earnest and sympathetic nature; persuasive of speech in conversation and exhortation, and freely emphasizing his thoughts with appropriate gestures, quick to resent injustice, and bold in his denunciation of wrong-doers,^[81]—more eloquent and effective in his spontaneous utterances and unstudied efforts than in the formal and labored style of his written treatises.

Of his domestic life we know but little. From his kindly mention of his wife and children in the final disposal of his property, we have a right to infer that his family relations were harmonious. The reverent regard of his sons for his wishes, long after his decease, shows that the respect which they bore for him was deep and lasting. Besides the three sons, his family included twice that number of daughters. These were all married at the time of his decease, and the fact that they, conjointly with their husbands, were remembered in the final disposal of his property indicates his affectionate regard for all the branches of his household. One of the daughters, with the remarkable Scriptural name of Mahershallalhashbaz, married Daniel Cole, and removed to Glen Cove, Long Island, then known as Moscheto Cove, and has numerous descendants still residing in that vicinity.^[82]

More than most men, Samuell Gorton has been honored in the persons of his descendants. His oldest son, Captain Samuell Gorton, succeeded in some respects, to the position and influence of his father and held many posts of honor in his Town and State. Benjamin, the youngest son, was one of the founders of the neighboring Town of East Greenwich. Othniel Gorton, a lineal descendant of Samuell Gorton, was several times chosen to the General Assembly from the Town of Warwick, and was Speaker of the House of Representatives at intervals during and subsequent to the Revolutionary War. Gen. Nathaniel Greene, next to George Washington, the most eminent military leader in the contest with Great Britain, traced his

lineage directly to John Greene and Samuell Gorton, noble founders of the liberties which he fought to sustain; as did also Col. Christopher Greene, of Revolutionary fame. Albert Gorton Greene, a descendant of John Greene, Samuell Gorton and Randall Holden, three of the original settlers of Warwick, became a judge of the Municipal Court in the City of Providence, and is well known to three generations as the author of "Old Grimes," and other popular ballads and poems. The late Governor Henry Lippitt, and the present Chief Magistrate of Rhode Island, the Hon. Charles Warren Lippitt, as well as the late Lieut.-Gov. Samuel G. Arnold, the historian of the State, are direct descendants of Samuell Gorton. The Rev. James Gorton, a Baptist minister of independent views now living, is a frequent contributor on social and religious topics to periodical literature. Dr. David Allyn Gorton, of Brooklyn, N. Y., another living descendant of Samuell Gorton, has won an enviable reputation in the practice of medicine, was formerly editor of the National Quarterly Review, is the author of an able work on "The Monism of Man," and numerous philosophical essays, as well as a treatise on "The Principles of Mental Hygiene," and voluminous contributions to medical literature. In recent years he has contributed several able papers to the collections of the Brooklyn Ethical Association. His son, Dr. Eliot Gorton, is well known as an alienist and an able writer on this and kindred topics, as is also Dr. W. A. Gorton, of the Butler Asylum for the Insane, in Providence. Charles Gorton, of the same city, who owns the only complete original edition of Samuell Gorton's published works known to exist in this country, is a tireless bibliophile and book collector, the possessor of invaluable literary and archæological treasures. Dexter Gorton is one of the most respected citizens of Providence, a man of sterling integrity, for many years Chief Engineer of the Fire Department of that City, now one of its Fire Commissioners, and has several times been chosen to the City Council. The descendants of Samuell Gorton are also widely distributed in other portions of the country. In the independence of mind and literary ability which they have often illustrated, the believer in heredity will recognize the out-cropping of the same sterling qualities which characterized the first of their honored name who made his home in the new world.

The house which Samuell Gorton erected and where he spent his later years was a land-mark in Old Warwick until within the last half century. From its door his eyes could rest on the placid waters of Warwick Cove, and beyond the meadow could see his cattle grazing upon the rounded uplands

of Warwick Neck. The surrounding scenery is restful to the eye, and invites the thoughtful contemplation of the deep things of life in which his soul delighted. A short time since, I visited the spot, and conversed with the oldest representative of four generations of his descendants, now occupying the ancestral acres. I walked up the hill-side back of the house which now occupies the site of the old Gorton homestead, to the little family graveyard where tradition says that Samuell Gorton was laid to rest with the patent of the Town of Warwick which he obtained in England,—a nobler decoration than a royal order—upon his breast. No monumental stone—not even a green mound or an over-arching tree—now marks the sacred bit of earth where his body long since turned to dust.

All around, however, are the gracious evidences that his life and labors were not vainly spent. The prosperity of the town which he founded and the Commonwealth which he helped to build, constitute his most enduring monument. South, lies the quiet hamlet of East Greenwich, of which his son was one of the founders, built in part upon land once owned by Samuell Gorton. West, also, lie the rural towns of Coventry and West Greenwich, the soil of which was largely covered by his original purchase from Miantonomi. What fortunes have been made where he found a wilderness and out of it wrought a humble home for his declining years! What untold happiness has filled the throbbing hearts of the many generations that have come after him as they have looked out upon the pleasant acres, honestly bought of their aboriginal possessors, and bravely held as a heritage to his posterity!

The Commonwealth which he loved and served so well has proudly held up the banner of Soul Liberty guarded and consecrated by Righteous Law, until its beautiful symbol^[83] has carried Hope and Safety to the uttermost parts of our American Union. Could this Founder of our Liberties look down upon these peaceful and prosperous scenes, and ponder upon their vast and beneficent significance, hardly would his unselfish soul miss the monumental stone which yet a grateful community shall raise to his fragrant memory. In thankfulness of heart he would bless the Power which has wrought so marvelously in him and in those who have followed in his footsteps, and murmur in grateful acknowledgment, “Yea, Lord, I have seen of the travail of my soul, and am satisfied.”

FOOTNOTES

[1.](#) Both Samuell Gorton, Sr., and his eldest son, spelled their first name with the double “L.”

[2.](#) “Beniamin Gorton Killed A wolfe And brought ye head & Skine to my house ye 21st day of December, 1674.”—[*Unpublished Town Records, of Warwick.*]

[3.](#) The site of the block-house has usually been placed on the North Side of the Mill Pond, at Old Warwick. Recent investigations, however, strongly favor the more natural site at Conimicut. I am told that Judge Brayton was convinced that this was the true location, before he died.

[4.](#) Notes to “Simplicities Defence against Seven-Headed Policie,” by Judge W. R. Staples, [*R. I. Hist. Soc. Coll.*]

Also “A Defence of Samuel Gorton,” By George A. Brayton, late Justice of the Supreme Court of Rhode Island. [*Providence: Sidney S. Rider.*]

[5.](#) Report on the Settlement of Warwick, 1642, and the Seal of the R. I. Historical Society, by William D. Ely and John P. Howland, (Proceedings, 1887-88,) and Report of the Committee on the Library, (Proceedings, 1890.)

[6.](#) Fuller’s “History of Warwick” also contains some sympathetic allusions to Gorton’s story. The Hon. William P. Sheffield, in an address before the R. I. Historical Society (1893), does him less than justice.

[7.](#) Mackie, et al. A letter of Gorton’s seems to fix this date with reasonable certainty as the year of his birth.

[8.](#) A Defence of Samuel Gorton and the Settlers of Shawomet, p. 5.

[9](#). In a letter to Nathaniel Morton, Gorton says: “I was not bred up in the Schoole of humane learninge, and I bless God that I never was.”

[10](#). *Vide* Mackie, and others. Gorton himself refers to his father as “a merchant of London,” which would possibly imply an earlier removal.

[11](#). Calendar’s Historical Discourse, p. 9. I have not yet found this letter of Gorton’s in the original.

[12](#). The fact that he subsequently returned and spent some time in London, unmolested, also militates against this charge.

[13](#). 1636, O. S.

[14](#). The trial of Wheelwright was in progress when Gorton arrived.

[15](#). Under date of June 7, 1637, his name appears on the roll of a company of volunteers from Plymouth to aid Massachusetts in the Pequot war. He probably saw no service.

[16](#). An early tradition, the origin of which I have not been able to trace, gives the name of Gorton’s wife as Elizabeth. In the New England Historical and Genealogical Register, (Vol. XLIV) however, there is a record of the bequest of Mary Mayplett, of London, widow, on Dec. 7, 1646, to her daughter, “*Mary Gorton*, wife of Samuell Gorton, being in New England,” of “all the money which her said husband Samuell doth owe me, and a breed of cattle which he hath of mine.” In a later volume (XLVI), there is a record of the will of “John Maplett, Doctor of Physicke, of the city of Bath, Somerset,” dated April 16, 1670, which contains the following clause: “I give and bequeath unto my dear sister, Mistress Mary Gorton, of New England, the sum of 20s., and to each of her children I give the sum of 10s. apiece.” Dr. John Maplett, the brother-in-law of Samuell Gorton, was eminent in letters as well as in medicine, having been for a time the Principal of Worcester College. (*Vide* Stevens’s Cyc. of Nat. Biography.) Samuell Gorton’s oldest child was a daughter named Mary, probably for her mother. His youngest daughter was named Elizabeth, but the late date of Dr. Maplett’s bequest to his sister Mary precludes the idea of a second marriage. There appear to have been at least two instances in the later

history of the Gorton family of marriages between Samuells and Elizabeths, and it is probably from this that the confusion has arisen. I am indebted to Mr. Adelos Gorton, of Philadelphia, for important facts bearing on this question.

[17.](#) Winslow afterwards vaguely accused her of “having made some unworthy speeches and carriages.” (“*Hypocrisy Unmasked*”).

[18.](#) For an account of Gorton’s trial see Plymouth Colony Records, Vol. I, pp. 100, 105, under date “5 Nov. 1638.”

[19.](#) *Vide* Portsmouth Records, under date “Aprill the 30th, 1639.”

[20.](#) April 28, 1639, William Coddington was Governor, under the Royal Charter, from May, 1674, to May, 1676, and from Aug. 28, 1678, to Nov. 1 of the same year, dying in office.

[21.](#) March 12, 1640.

[22.](#) He is said to have characterized the magistrates as “just asses,” and to have called one of the witnesses a “jack-an-apes.” (See charges in Portsmouth Records). This occurred in August, 1640.

[23.](#) So Leckford (1641), Winthrop and Morton. Judge Staples questions this. Gorton himself refers to “fines, whippings and banishments out of their jurisdiction,” suffered by himself and friends. (*Simplicities Defence*). See also Edward Winslow’s “*Hypocrisie Unmasked*.”

[24.](#) For charges against Gorton see Portsmouth Town Records. There, also, under date “Mch. 16, 1642,” is a record of the banishment and disfranchisement of Wickes, Carder, Holden, Shotten and Potter; an action practically reversed on the 19th of the following September. (Portsmouth Records). They had already left Portsmouth before their official banishment.

[25.](#) There is reference to these controversies in Providence Records under date Nov. 17, 1641, in which Gorton’s name is mentioned.

[26.](#) There are strong reasons for questioning the authenticity of this letter.

[27.](#) This is admitted by Knowles, the biographer of Roger Williams. Arnold, certainly, had few sympathizers. None of the five “Disposers” of the town took part in this action.

[28.](#) The first deed of land beyond the Pawtuxet was made to John Greene, Oct. 1, 1642, and signed by Miantonomi and Soccononocco. The deed to Samuell Gorton and others, of the Shawomet lands bears date on the 12th of the following January (1642, O. S.).

[29.](#) The submission of Pomham and Soccononocco to Massachusetts bears date “June 22nd, 1643.”

[30.](#) *Vide* “*Narragansett Historical Register*,” Vol. I, pp. 16, 17, *et seq.*

[31.](#) Sept. 12, 1643.

[32.](#) Reply of Nowell and the Boston authorities to Gorton, *vide* “*Simplicities Defence*.”

[33.](#) “All ministers of the Gospel.” (Brayton.) The Providence men were Chad. Brown, Thomas Olney, William Field and William Wickenden. Sheffield says “Brown and Wickenden *afterwards* became clergymen.” (*Samuell Gorton*, p. 45).

[34.](#) Sheffield says “for several days.” (Address before R. I. Historical Society, February, 1893).

[35.](#) The invaders also took and sold eighty head of cattle belonging to Gorton and his friends.

[36.](#) A full account of this contest, with statements of both parties, appears in Gorton’s “*Simplicities Defence*,” (first ed., London, Aug. 3, 1646.) See also Winslow’s “*Hypocrisie Unmasked*.”

[37.](#) Gorton was at first ordered to formulate his answers “*within fifteen minutes*,” but on appeal was given until the next morning.

[38](#). By two majority!

[39](#). Gorton was taken to Boston as “prisoner of war,” Oct. 13, 1643. He was sentenced Nov. 3, 1643; released Mch. 7, 1643-44 (1643, O. S.).

[40](#). History of New England, Vol. I.

[41](#). *Simplicities Defence against Seven Headed Policie*.

[42](#). The reference is to Mr. Cotton’s championship of Anne Hutchinson and the Antinomian heresy.

[43](#). Williams probably sold his half of Prudence to obtain money to pay his expenses to England, when he went to make application for a charter. The purchase was in the name of a friend and co-partner of Winthrop, one Parker, a merchant of Boston.

[44](#). The date ordinarily assigned to this patent, “Aug. 19, 1644,” must be erroneous. It was probably granted two years later, when Gorton was in England.

[45](#). The manner in which the authorities of Massachusetts Bay recognized this safe-conduct was characteristic. Under date of “13th May, 1648,” the following entry appears in the Colonial Records: “Vppon the request of the Earle of Warwicke, the Court allowes Samuell Gorton, now a shipboard, one full weeke after the date hereof, for the transportatiō of himselfe & his goods through or iurisdictiō to the place of his dwelling, he demeaning himselfe inoffensively, accordinge to the contents of the S^d earle’s l’re, & that the marshals or some of them shall shew him a coppie of this order, or fix it to the maine mast of the shippe in which he is.”—*Mass. Records, Vol. III, p. 127*.

[46](#). Warwick was not named in the Charter, as the town was not organized when it was granted; but it united with the other towns in 1647, in the first General Assembly of the entire Colony.

[47](#). These were the names given the contesting parties of white men by the Indians. The latter, Roger Williams says, means “coat wearers,” which

leads Dr. Fiske to query whether the Gortonists habitually went in their shirt sleeves!

[48](#). Peage, or wampum, was legal tender in Rhode Island until 1662, and doubtless still passed current among the Indians. The bill of sale bears the name of Pomham's son, but in its terms binds Pomham as well as his heirs.

[49](#). The Charter of 1643-44 provided "that the laws, constitutions, punishments for the civil government of the said Plantation be conformable to the laws of England so far as the nature and constitution of that place would admit."

[50](#). Gorton's legal acquirements were evidently superior to those of any other man in the Colony. He was one of the first Judges of the Colony.

[51](#). Historical Records, Vol. I, p. 166.

[52](#). William Arnold and the Pawtuxet malcontents.

[53](#). Hazard's State Papers, p. 555. Quoted in R. I. Colonial Records, Vol. I, p. 235.

[54](#). Colonial Records (May 19, 1652).

[55](#). John M. Mackie.

[56](#). *Vide* "Certain Letters which Passed between the Penman of this Treatise and certain men newly come out of Old England into New." By Samuella Gorton.

[57](#). Colonial Records, 1658.

[58](#). *Ibid*, 1665.

[59](#). Records of the Town of Warwick (unpublished).

[60](#). Greene's Short History of Rhode Island, p. 76.

[61](#). Unpublished Town Records.

[62.](#) *Vide* Austin's Genealogical Dictionary of Rhode Island. See, also, unpublished Town Records of Warwick.

[63.](#) Massachusetts Records, Vol. II, p. 51.

[64.](#) History of Rhode Island. By Samuel G. Arnold.

[65.](#) *Ibid.*

[66.](#) This is substantially the conclusion of Judge Brayton. (Defence of Samuel Gorton).

[67.](#) That Gorton believed in civil government also clearly appears in his correspondence relating to the Quakers, where he expressly dissents from their views about government.

[68.](#) *Vide* Nowell, Rawson, Winthrop, Winslow, Morton, *et al.*

[69.](#) "The Father was never knowne nor is he knowable but in Christ." (Commentary on the Lord's Prayer).

[70.](#) The quotations, unless otherwise indicated, are from Gorton's unpublished Commentary on the Lord's Prayer. (Commentary, p. 101).

[71.](#) "Though no church was formed in connection with his ministrations, he exercised a powerful influence upon the religious views of the Colony." History of Warwick, p. 301. By Orris Payson Fuller, B. A.

[72.](#) He also differed with the Friends of his day in his views about government.

[73.](#) This is strongly emphasized in his Commentary on the Lord's Prayer.

[74.](#) Commentary Mss., p. 11. See, also, p. 14, *et seq.*, as well as "*Simplicities Defence*," (R. I. Hist. Soc. Ed.) page 183.

[75.](#) Commentary Mss., page 57.

[76.](#) Dr. Fiske is in error in classing him as a follower of Anne Hutchinson. His theology was original and peculiarly his own. (Commentary Mss., p. 58).

[77.](#) Commentary Mss., p. 90.

[78.](#) It is hardly necessary to say that neither Gorton or Parker held this doctrine in any materialistic sense. It was a lofty philosophical conception that the entire creative energy was expressed in the divine nature, to conceive which as purely masculine was inadequate, anthropomorphic and irrational.

[79.](#) The first charge against Roger Williams, on which he was banished from Massachusetts Bay, accused him of teaching “That wee have not our land by Pattent from the King, but that the natives are the true owners of it and that wee ought to repent of such receiving it by Pattent.” Gorton agreed with Williams as to the necessity of purchase from the Indians, but thought the charter also necessary.

[80.](#) John M. Mackie, in “*Sparks’s American Biography.*”

Samuel Eddy, Secretary of State of Rhode Island, *circum* 1820, says of Gorton: “From the first establishment of the government he was almost constantly in office, and during a long life there is no instance of record to my knowledge of any reproach or censure cast upon him, no complaint of him, although history furnishes abundance of evidence that there were no lack of enemies to his person, principles, or property. This can hardly be said of any other settler of the Colony of any standing.” Quoted in Judge Brayton’s “*Defence of Samuel Gorton.*”

[81.](#) *Vide* Winthrop’s Letters, the Portsmouth charges, etc.

[82.](#) The eldest daughter, Mary, married, i. Peter Greene; ii. John Sanford; the youngest, Elizabeth, married John Crandall; Sarah married William Mace; Ann’s husband was John Warner; Susanna’s was Benjamin Barton. From these marriages have sprung many well known Rhode Island families.

[83.](#) The Colonial Assembly of 1647 provided “that the seale of the Province shall be an anchor.”

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INDEX

Adams, Charles Francis, on Samuell Gorton, [83](#)

Agnosticism, Gorton's views on, [88-89](#)

Aldredge, Mrs.

Her trouble with the Plymouth authorities, [28](#)

Samuell Gorton's defence of, [28-29](#)

Anarchism, Gorton's alleged, [74-78](#)

Anchor, the Seal of Rhode Island, [115](#)

Andros, Governor, [78](#)

Antinomianism, [97](#) and *note*.

Apponaug.

Town Hall of Warwick in, [9](#), [14](#)

Ancient records in, [14](#), [15](#)

Aquidneck.

Settlement of, [29-31](#)

Effort of Massachusetts to separate from Providence Plantations, [49-55](#)

A refuge for Warwick residents in King Philip's war, [70](#)

Arnold, Hon. Samuel G.,

His History of Rhode Island, [17](#), [19](#)

On Samuell Gorton's political creed, [75](#)

His kinship to Samuell Gorton, [75](#), [110](#)

Arnold, William,

His contentions in Providence and Pawtuxet, [34](#), [36](#)

His alliance with Massachusetts Bay, [36](#)

His small following, [36](#), *note*.

His friends accuse the men of Shawomet, [62](#), and *note*.

Arrow-heads, [14](#)

Atherton Company, [39](#), [49](#)

Awoshosse, [52](#)

Barton, Benjamin,

Marries Susanna, daughter of Samuell Gorton, [108](#), *note*.

Bible, Samuell Gorton's principal text-book, [22](#), [99](#)

Bibliography, [119-122](#)

Blasphemy, Charges against Gorton for, [39](#), [43](#), [45](#)

Boston, Sympathy with Gorton in, [45-46](#)

Bradford, William, [10](#)

Brayton, Hon. George A.

His Defence of Samuell Gorton, [18](#), and *note*, [19](#)

On Gorton's noble connection, [21-22](#)

On the peace-makers from Providence, [40](#), *note*.

Canonchet, [69](#)

Carder, Richard.

His banishment from Portsmouth, [33-34](#), *note*.

His imprisonment in Massachusetts, [47](#)

Channing, William Ellery.

Samuell Gorton's theology compared with, [96](#)

Charles the First.

His contest with Parliament, [35](#)

Charles the Second.

Gorton prepares an address to, [67](#)

Grants the Charter of 1663, [68](#)

Charlestown, Samuell Gorton's imprisonment in, [45](#)

Charter.

Of Providence Plantations, 1643-44, [53](#), [56](#), [60](#), [61](#), *note*.

Of Warwick, [54](#)

Royal Charter of 1663, [68](#)

Christ, Samuel Gorton's teachings about, [88](#), [89](#), [91](#), [95-97](#)

Christocentric character of Samuel Gorton's theology, [88](#)

Church of England, Samuel Gorton's indebtedness to, [23](#)

Clam-bakes, [14](#)

Clarke, John.

Represents Rhode Island in England, [66](#)

Gorton's letter to, concerning the Quakers, [67](#)

Secures the Charter of 1663, [68](#)

Coddington, William.

Settles at Aquidneck, [30](#)

Removes to Newport, [30](#)

Establishes a Theocracy, [30](#)

Supported by a minority, [31](#)

Opposes union under the Charter of, 1643-44, [56](#)

Secedes from the Charter Government, [63](#)

Governor under the Royal Charter, [30](#), *note*.

Code of 1647, [60-62](#)

Cole, Daniel, marries Mahershallalhashbaz, daughter of Samuel Gorton, [108](#)

Colonial dwellings in Warwick, [8](#)

Common Law of England, [76-77](#), [105](#)

Conanicus, [52](#)

Conimicut Point.

Samuel Gorton's Block House on, [12](#), and *note*.

The siege of, [12](#), [40-42](#)

Connecticut rejects the limitations of citizenship by church-membership, [80](#)

Cotton, John, his alleged heresies, [47-48](#), and *note*.

Coventry, [114](#)

Coweset, Gorton's lands in, deeded to his sons, [72](#)

Coweset Bay, [9](#)

Crandall, John, marries Elizabeth, daughter of Samuell Gorton, [108](#), *note*.

Cromwell, Oliver, letter to, concerning the Quakers, [66-67](#)

Cutshamekin, [46](#)

Declaration of Independence, [105](#)

East Greenwich.

Land in owned by Samuell Gorton, [72-73](#), [114](#)

Benjamin Gorton, one of its first settlers, [73](#)

Eddy, Samuel, on Samuell Gorton's character, [106](#), *note*.

Ely, William D., his studies of the Gorton history, [48](#), and *note*.

Emerson, Ralph Waldo, his philosophy foreshadowed by that of Samuell Gorton, [92](#), [106](#)

Ethical teachings of Samuell Gorton, [97](#), [101](#)

Fiske, John, LL. D.

His account of Samuell Gorton in "The Beginnings of New England.", [18](#)

His story of the murder of Miantonomi, [52](#)

On the Gortonoges and Wattaconoges, [57](#), *note*.

His inadequate estimate of Gorton's career, [82](#)

Friends.

Gorton's defence of, [66](#), and *note* [67](#)

His letters to, [66](#), *note*.

His theology compared with that of, [93-94](#)

He opposes their doctrine of the "inner light.", [93](#)

He opposes their doctrine about Government, [94](#), *note*.

Gaspee, burning of, [11](#)

Gorton, Adelos, vi, [27](#), *note*.

Gorton, Ann, daughter of Samuell Gorton, [108](#), *note*.

Gorton, Benjamin,

Kills a wolf in Warwick, 1774, [12](#), *note*.

Inherits estate from his father, Samuell Gorton, [71](#)

Early settler of East Greenwich, [72](#), [109](#), [114](#)

Gorton, Charles, [111-112](#)

Gorton, Dr. David Allyn, [110-111](#)

Gorton, Dexter, [112](#)

Gorton, Dr. Eliot, [111](#)

Gorton, Elizabeth, [108](#), *note*.

Gorton, Rev. James, [110](#)

Gorton, John.

Inherits estate from his father, Samuell Gorton, [71](#)

Shares in final division of the Coweset lands, [72](#)

Gorton, Mary, eldest daughter of Samuell Gorton, [27](#), *note*, [108](#), *note*.

Gorton, Mary Maplett,

Wife of Samuell Gorton, [26](#), [27](#) and *note*.

His testimony to her gentle birth, [27](#)

His provision for her in the disposal of his estate, [72](#)

Gortonoges, [10](#), [57](#), and *note*.

Gorton, Othniel, [109](#)

Gorton, Parish of, in England, [21](#)

Gorton, Samuell.

Born in 1592, [21](#), and *note*.

The man and his work, [21](#)

His education, [22](#), and *note*.

His residence in London, [23-24](#)

His marriage, [24](#)

His emigration to America, [25](#)

His residence in Boston and Plymouth, [25-29](#)

His first meeting with Roger Williams, [26](#)
His troubles with the Plymouth authorities, [28](#)
His banishment from Plymouth, [29](#)
His difficulties in Portsmouth, [31-33](#)
His banishment by the Coddington Government, [33](#)
His contentions in Providence, [34-35](#)
His settlement in Shawomet, [37](#)
He is summoned to Boston, [39](#)
Besieged at Conimicut, [40-42](#)
Taken to Boston for trial, [43](#)
Imprisoned in Massachusetts, [43-45](#)
His release and return to Portsmouth, [45-49](#)
Secures the submission of the Narragansetts to the British Government, [51](#), [52](#), [55](#)
Excluded from Shawomet by Massachusetts, [49](#), [51](#)
His voyage to England, 1645-48, [54-55](#)
Secures Charter for Warwick, [54](#)
His later career, [59](#)
His service in the General Assembly, [59-65](#)
Probable author of the statute against slavery, [63-65](#)
General Assistant, Moderator and President, [65](#)
His defence of the Quakers, [66-67](#)
Incorporator of the Colony under the Royal Charter, [68](#)
Assigned shares in Warwick Neck, [68](#)
His life saved by friendly Indians during King Philip's War, [68-69](#)
Divides his estate among his children, [71-73](#)
His political philosophy, [74-81](#)
His religious convictions, [82-102](#)
His character and personal appearance, [106-108](#)

Gorton, Samuel, Jr.

Born in England, 1630, [27-28](#)
Writes will of John Wickes, [70](#)
Elected Town Treasurer, [71](#)
Trust reposed in him by his father, [71-72](#)
Participates in the final division of Coweset lands, [72-73](#)

Gorton, Sarah, daughter of Samuel Gorton, [108](#), *note*.

Gorton, Susanna, daughter of Samuell Gorton, [108](#), *note*.

Gorton, Dr. W. A., [111](#)

Greene, Hon. Albert Gorton, [110](#)

Greene, Col. Christopher, [110](#)

Greene, John,

Co-settler of Warwick with Samuell Gorton, [13](#)

First deed of Shawomet lands to, [37](#), *note*.

Accompanies Gorton to England, [54](#)

Signs will of John Wickes, [71](#)

Greene, Gen. Nathanael, [109-110](#)

Greene, Peter, marries Mary, daughter of Samuell Gorton, [108](#), *note*.

Hireling ministry, [91](#)

Historical Society, documents in the Library of, [15](#), [18](#), and *note*.

Holden, Randall.

Co-settler of Warwick with Samuell Gorton, [13](#)

His banishment from Portsmouth, [33](#), [34](#), *note*.

Commissioner to convey submission of the Narragansetts, [52](#)

Accompanies Gorton to England, [54](#)

Will of John Wickes proved before him, [70](#)

Huguenots, [81](#)

Hutchinson, Anne.

Her banishment from Massachusetts Bay, [25](#)

Settles at Aquidneck, [29](#)

Gorton not her follower, [97](#), *note*.

Hypocrisy Unmasked, [28](#), *note*, [33](#), *note*, [42](#), *note*.

Immortality, Gorton's views about, [97](#)

Imprisonment for debt forbidden by Code of 1647, [62](#)

Imputed sin, [97](#)

Incorruptible Key to the CX Psalme, [78](#), [79](#), [84](#)

Indians.

In Warwick, [12](#)

At Pottowomut Neck, [14](#)

Employed by Massachusetts against Gorton, [40](#), [41](#)

Their sympathy with Gorton, [46](#)

They save his life, [68-69](#)

He is their trusted counsellor, [69](#)

Individualism, Samuella Gorton's, [77](#), [105](#)

Inner Light, Gorton opposes the Quaker doctrine of, [93-94](#)

Intolerance.

Of the Puritans, [25](#)

Samuella Gorton opposes, [78](#), [94](#)

Its contest with Soul Liberty, [78-80](#)

Final overthrow of, [81](#)

James the Second, [78](#)

Liberty of Conscience.

Gorton leaves England for, [25](#)

Not found in Massachusetts, [26](#)

Nathaniel Ward on, [48](#)

Upheld by Gorton and Roger Williams, [78-81](#)

Lincoln, Abraham, [76](#)

Lippitt, Hon. Charles Warren, [110](#)

Lippitt, Hon. Henry, [110](#)

London, Gorton's residence in, [24](#)

His return to, [54-55](#)

Lord's Prayer, Gorton's Commentary on, [85](#), *et seq.*

Mace, William, married Sarah, daughter of Samuella Gorton, [108](#), *note*.

Mackie, John M. his Life of Samuell Gorton, [17](#), [21](#), [23](#), [106](#), *note*, [119](#)

Magna Charta, [76](#)

Mahershallalhashbaz, daughter of Samuell Gorton, [108](#)

Manhattan, [54](#)

Maplett,

Dr. John, Brother-in-law of Samuell Gorton: his bequest to his sister and her children, [27](#), *note*.

Mary, wife of Samuell Gorton, [26](#), [27](#), *note*, [29](#), [72](#), [107](#)

Mary, mother of Mrs. Gorton: her bequest to her daughter, [27](#), *note*.

Massachusetts Bay.

Intolerance of its government, [25](#)

Gorton banished from, [45](#)

Its contest for the control of Narragansett Bay, [49-58](#)

Its efforts blocked by Samuell Gorton, [51-58](#)

Failure of its theocratic policy, [79-81](#)

Miantonomi.

Gorton purchases Shawomet of, [37](#), [38](#)

Winthrop and Roger Williams purchase Prudence Island of, [50](#), and *note*.

His murder by the Mohegans with the consent of the Boston elders, [52](#)

Mixan, [52](#)

Monism, Samuell Gorton's, [89](#)

Morton, Nathaniel,

On Samuell Gorton, [33](#)

Gorton's correspondence with, [22](#), *note*, [84](#)

Mysticism, Gorton's, [84](#), [94](#)

Narragansett Bay.

Gorton's residence on, [13](#), [37](#), [112](#)

Settlement of Aquidneck on, [29](#)

Efforts of Massachusetts authorities to control, [50](#), [55](#)

Narragansett Indians.

Allies of Gorton, [10](#)

Gorton purchases Shawomet of, [37](#)
Gorton obtains their submission to Great Britain, [51-53](#)
Massachusetts declares war against, [53](#)
Gorton publishes their submission in London, [55](#)

New England Confederation, [39](#), [53](#)

Nowell, Increase, on Gorton's alleged blasphemies, [39](#), and *note*, [83](#), *note*.

Ordinances of religion, Gorton's opposition to, [90](#), [93](#)

Palfrey, John G.

His account of Samuell Gorton in his History of New England, [18](#)
Admits sympathy with Gorton in Massachusetts, [46](#)

Pawtuxet.

Gorton's settlement in, [35](#)
His contest with William Arnold, [36](#)
His departure from, [37](#)
Contest of Massachusetts for, [50](#)

Pawtuxet River, [8](#), [14](#)

Peage, [57](#), and *note*.

Perry, Hon. Amos, [85](#)

Pessicus, [52](#)

Philip, King.

His war with the white settlers, [68](#)
Samuell Gorton's life saved, [69](#)
Warwick's sufferings during the war, [69](#)
A battle fought in Warwick, [69](#)

Philosophy, Samuell Gorton's, [74](#), *et seq.*

Pilgrims, [26](#)

Plymouth.

Gorton's residence in, [26](#)
His banishment from, [29](#)

Sends men to Warwick during King Philip's war, [69](#)

Pomham.

His assent to Gorton's Shawomet purchase, [37](#)

He repudiates his signature, [38](#)

His submission to Massachusetts Bay, [38](#)

His Block-House on Warwick Neck, [51](#)

He sells his claim to Samuell Gorton, [57](#), and *note*.

Popaquinepaug, (See Pawtuxet.)

Portsmouth.

Town-government instituted, [29-31](#)

Union with Newport, [31](#)

Gorton's troubles in, [32-33](#)

Gorton returns to, [49](#)

Portsmouth.

Is elected to a magistracy, [49](#)

Union with Northern towns under Charter of 1643-44, [56](#)

Pottowomut Neck, Indian relics found on, [14](#)

Pottowomut River, [14](#)

Prayer, Samuell Gorton's definition of, [91-92](#)

Providence.

Samuell Gorton emigrates to, [34](#)

Controversies in, [34](#), and *note*, [35](#)

Peacemakers from, interfere at Shawomet, [40](#), and *note*.

United with Aquidneck under Charter of 1643-44, [56](#)

Providence Plantations.

Antagonism of Massachusetts to, [49-55](#)

Charter obtained for, [56](#), and *note*.

Action of General Assembly of in 1645, [53](#)

Prudence Island.

Its strategic importance in the struggle with Massachusetts Bay, [50](#)

Its purchase by Gov. Winslow, [50](#), and *note*.

Puritans.

Their revolt against religious formalism, [23](#)
Send an armed force against Gorton, [40](#)
Their preaching to the Gortonists, [46](#), [47](#)
Their opposition to soul liberty, [78-81](#)

Quakers.

Gorton's defence of, [66](#), and *note*, [67](#)
His letters to, [66](#), *note*, [78](#), *note*.
His theology compared with that of, [90-91](#), [93-94](#)

Rawson, Edward, on Samuell Gorton, [83-84](#)

Religion, Samuell Gorton's views concerning, [82-102](#)

Religious development, Samuell Gorton on, [99](#)

Remphan, Chion, Moloch, [44](#)

Revolutionary War, the first blow struck in Warwick, [11](#)

Rites and ceremonies, Gorton's distrust of, [90-91](#), [92-93](#)

Rhode Island.

Interesting character of its early history, v, [17](#)
Settlement of, [29-30](#), [34](#), [36](#)
Soul Liberty established in, [15](#), [19](#), [78-81](#)
Contest with Massachusetts Bay, [38-58](#)
First Charter of, [56](#), and *note*, [61](#), *note*.
Earliest Code of, [60-63](#)
Triumph of Rhode Island principles, [79-81](#)

Salvation by character, taught by Samuell Gorton, [97](#)

Sanford, John, marries Mary, daughter of Samuell Gorton, [108](#), *note*.

Saracens, [81](#)

Separatists, [23](#), [26](#)

Shawomet.

First settlement of, [37](#), and *note*.

Gorton's troubles in, [38-48](#)
Becomes Warwick, [49-58](#)

Sheffield, Hon. William Pitt.

His address on Samuell Gorton, [18](#), *note*, [40](#), *note*, [41](#), *note*.

Simplicities Defence Against Seven-Headed Policie, [18](#), *note*, [33](#), *note*, [39](#),
note, [42](#), *note*, [47](#), *note*, [54](#), [117](#)

Slavery, Statute against, in 1652, [63-65](#)

Smith, Ralph.

Gorton hires a house of in Plymouth, [26](#)
Colleague of Roger Williams, [26](#)

Soccononocco.

Signs deed to Shawomet lands, [37](#), and *note*.

Repudiates his signature, [38](#)

Makes submission to Massachusetts, [38](#), and *note*.

His revolt one cause of the submission of the Narragansetts to Great
Britain, [52](#)

Soul Liberty.

Defence of by Roger Williams and Samuell Gorton, [19](#)

Rhode Island the first Government founded on, [79](#)

Its final triumph in the Nation, [81](#)

Sources of information, [17-20](#)

Squatter Sovereignty, denied by Samuell Gorton, [75](#)

Staples, Hon. William R.

On Samuell Gorton, [18](#), and *note*, [33](#), *note*.

On the death of John Wickes, [70](#)

Sumner, Charles, [76](#)

Swedenborg, Emanuel, his theology compared with that of Samuell
Gorton, [88-90](#)

Theocracy.

Of Massachusetts Bay, [25](#)

Of Coddington's Government, [30](#)

Its contest with Soul Liberty, [78](#)

Its final failure, [81](#)

Tomanick, [52](#)

Transcendentalism. Samuell Gorton a forerunner of, [92](#), [106](#)

Trinitarianism. Samuell Gorton's views about, [95-96](#)

Unknowable. Samuell Gorton's doctrine of, [88](#)

Wampum, legal tender in Rhode Island, [57](#), *note*.

Ward, Nathaniel.

His exhortation to Richard Carder, [47](#)

His "Simple Cobbler of Agawam.", [48](#)

Warner, John.

Commissioner to convey the submission of the Narragansetts, [52](#)

Marries Ann, daughter of Samuell Gorton, [108](#), *note*.

Warwick Cove, [13](#), [113](#)

Warwick, Earl of.

Grants Patent to Samuell Gorton, [54](#)

Gives Gorton safe conduct through Massachusetts, [55](#)

Massachusetts recognizes his authority, [55](#), *note*.

Warwick, Old and New, [7-16](#)

Beautiful in Summer, [9](#)

Town government organized in, [56-57](#)

Unites with Providence and Aquidneck, [56](#)

Samuell Gorton's service of, [59-73](#)

Wattaconoges, [57](#), and *note*.

West Greenwich, [114](#)

Wheelwright, John, his banishment from Massachusetts Bay, [25](#)

Wickes, John.

His punishment at Portsmouth, [33](#), and *note*.

He goes to Providence, [34](#)
Commissioner of the Narragansetts, [52](#)
His supposed death in King Philip's war, [70-71](#)
His will, [70](#)

Williams, Roger, [10](#), [19](#), [26](#), [36](#), [53](#), [57](#), *note*, [63](#), [77](#), [78](#)

His residence in Plymouth, [26](#)
His first meeting with Samuell Gorton, [26](#)
His banishment from Massachusetts Bay, [25](#)
His early disagreements with Gorton, [35](#)
His alleged letter to Winthrop of doubtful authenticity, [35](#), *note*.
He sells his half of Prudence Island, [50](#), and *note*.
He visits England and secures a Charter, [56](#)
His doctrine of Soul Liberty, [19](#), [78-81](#)
The first charge against him in Massachusetts, [104](#), *note*.
His conversion to Gorton's views of civil government, [77-78](#), [104](#)

Winslow, Edward, his "Hypocrisie Unmasked.", [28](#), *note*, [33](#), *note*, [42](#), *note*.

Winthrop, John.

On Gorton's controversy with Roger Williams, [35](#), and *note*.
Purchases Prudence Island, [50](#), and *note*.
His inconsistency, [50-51](#)
Defeat of his plans by Gorton, [51-55](#)

Witchcraft.

Provision against in Code of 1647, [61-62](#)
Scepticism about in Rhode Island, [62](#)
Charges against the men of Shawomet, [62-63](#)
No prosecutions for in Rhode Island, [63](#)

Woman. Samuell Gorton's favors her equality with man in the Church, [101](#), [102](#)

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Punctuation has been normalized. Variations in hyphenation have been retained as they were in the original publication. The following changes have been made:

Peague —> Peage {135}

comon (bar-capped m) course —> common course {64}

A reference under the Index entry “Quakers” referring to page 118 was not found to be accurate, and was removed.

Footnotes have been moved to the back of the main text.

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